

To: Brenda Rinard, Senior Partner
From: Junior Associate
Re: K.L. v. Mountain Range School District
Date: 05/29/2025

Introduction

Plaintiff K.L., a minor, is suing our clients — Scott White, principal of Mountain Range School, Joanna Wong, assistant principal, and Kim Rodriguez, a school counselor — alleging that disciplinary action taken against her for posting a YouTube video violated her First Amendment rights. Plaintiff seeks \$30,000 in monetary damages. We have moved for summary judgment, arguing that the plaintiff's claim fails because her speech falls outside the core protections of the First Amendment in the school context. I believe we have a strong argument for summary judgment based on the principles established in *Tinker*, *Bethel*, and subsequent cases, which allow schools to regulate speech that causes substantial disruption or contradicts the school's basic educational mission. Further, even if off-campus, K.L.'s conduct had clear and harmful impacts within the school environment. Accordingly, the disciplinary action was appropriate and lawful.

Issue #1: Free Speech Right

Issue Statement:

Plaintiff K.L. recorded a video off-campus using insulting language targeting a fellow student and uploaded it to the public platform YouTube. In *Tinker v. Des Moines Independent Community School District*, the Court held that students do not shed their First Amendment rights at the schoolhouse gate unless the speech materially disrupts the educational environment or infringes on the rights of others. Given that K.L.'s conduct occurred outside of school grounds, does the school's disciplinary action of suspension violate her free speech rights under the First Amendment?

Primary Rule of Law

The First Amendment to the United States Constitution provides:

“Congress shall make no law ... abridging the freedom of speech, or of the press.”

Secondary Rule of Law

In *Tinker v. Des Moines Independent Community School District*, 393 U.S. 503 (1969), the Supreme Court held that:

“Students have the right to free speech unless their speech ‘materially disrupts class work or involves substantial disorder or invasion of the rights of others.’”

Later, in *Wisniewski v. Board of Education*, 494 F.3d 34 (2d Cir. 2007), the court recognized that,

“Off-campus conduct can create a foreseeable risk of substantial disruption within a school.”

The Supreme Court in *Bethel School District No. 403 v. Fraser*, 478 U.S. 675 (1986), held that:

“Surely it is a highly appropriate function of public school education to prohibit the use of vulgar and offensive terms in public discourse.”

In *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260 (1988), the Court concluded that school officials may impose restraints on students’ speech in activities that are “an integral part of the school’s educational function”—including the publication of a school-sponsored newspaper by a journalism class—so long as their decision has “a substantial and reasonable basis.” *Id.* at 1466 (quoting *Frasca v. Andrews*, 463 F. Supp. 1043, 1052 (E.D.N.Y. 1979)).

In *Morse v. Frederick*, 127 S. Ct. 2618 (2007), the Court stated that:

“Students in ‘approved social events and class trips are subject to district rules for student conduct.’”

Application

Topic #1: Disruption

In *Tinker*, the students wore black armbands to silently protest the Vietnam War. The District Court made no finding of disruption, and the Supreme Court independently reviewed the record and found no evidence that the school authorities had reason to anticipate that the wearing of the armbands would substantially interfere with the work of the school or impinge upon the rights of other students. *Tinker* thus formally established the “material and substantial disruption” standard. The Court emphasized that while student speech is protected, it is subject to limitation when it materially interferes with the school’s operation or the rights of others. This rule has been used in all six precedent cases.

In *Bethel School District v. Fraser*, the speech occurred during a school assembly attended by the entire student body (over 600 students). There are some students expressing discomfort and surprise. Compared to *Fraser*, K.L.’s video reached a much smaller audience, which could be used to argue that the impact was similarly limited and might favor K.L.’s position. However, *Fraser*’s speech was not targeting someone, while K.L.’s was. So the effect on that certain person is definitely much more.

In *Wisniewski v. Board of Education*, the student created an icon depicting a gun firing at his English teacher, accompanied by the words “Kill Mr. VanderMolen.” The incident led to substantial disruption within the school: the threatened teacher requested to stop teaching the student’s class, the administration had to intervene, and interviews were conducted during instructional time. Even though there was no actual act of violence, the court found that the foreseeable risk of substantial disruption justified the school’s disciplinary action. This case underscores that a significant and foreseeable risk of disruption, even without actual violence,

satisfies the Tinker standard. This could be strongly in favor of K.L.'s side because, compared to the disruption of Wisniewski's case, K.L.'s video neither has a significant disruption nor a foreseeable risk. There's only one girl being off school for a day.

In *Kowalski v. Berkeley County Schools*, the student created a public MySpace forum targeting another student for harassment. Although the online conduct originated off-campus, it had an immediate impact: the targeted student chose to leave school temporarily due to the harassment, and there was discussion among the student body. Only about twenty students joined the forum, yet the court found the disruption sufficient to justify the school's intervention. This case can be used by us because it closely parallels K.L.'s situation, where a video was posted online, causing emotional harm to a student, and leading to minor yet noticeable disturbances within the school. Even the number of students who know and are being affected is almost the same. Since the final holding for this case is that the disruption reaches the level of "significant", we can argue that K.L.'s case should have the same holding.

Applying these precedents to the hypothetical case, even though K.L.'s video was created and uploaded off-campus, it triggered immediate disruption inside the school. Students discussed the video the next day, one of the targeted students cried and left school, and administrators had to pause regular activities to launch an investigation. These outcomes represent precisely the type of disruption that Tinker sought to regulate.

The opposing side might argue that the number of affected students was small and therefore insufficient to constitute a substantial disruption. However, the number of students affected is not the sole determining factor. As the *Kowalski* case illustrates, even a relatively small number of students can create a substantial impact if the harm is significant. Emotional harm to a single student, especially when it results in withdrawal from school activities, can justify school intervention. After all, we do not measure the seriousness of harm solely by numbers; a single student suffering serious emotional distress can be more significant than a large number of students experiencing only mild discomfort. Furthermore, K.L., as the creator and original distributor of the video, can be seen as a principal instigator, similar to the role of the MySpace page creator in *Kowalski*. Both acted as catalysts, magnifying the impact of the speech.

Topic #2: Out of School

In Hazelwood, the conduct did not take place off-campus; the case involved a school-sponsored newspaper created as part of a journalism class, and the Court emphasized the importance of maintaining control over school-sponsored activities integral to the school's educational function. Although Hazelwood does not directly involve off-campus speech, it underscores the school's authority over student expression closely tied to school functions. Hazelwood has limited relevance here, but its emphasis on protecting the educational environment supports Mountain Range School's general interest in maintaining discipline, though it does not directly address K.L.'s case, which occurred entirely outside of school activities.

Morse's case can support K.L.'s side a lot. In Morse, the conduct occurred off-campus during a school-approved and supervised event—the Olympic Torch Relay. The Court held that even though Frederick's banner was displayed off school grounds, the fact that it was during a school-related event justified school regulation. Importantly, the Court recognized that "students in approved social events and class trips are subject to district rules for student conduct." This distinction could support K.L. because K.L.'s video was created off-campus, outside the context of any school-approved or school-related activity. Unlike Morse, there was no official school supervision or sponsorship involved, so it seems that the school had nothing to do with what K.L. posted online out of school. But there's another distinction worth mentioning: Frederick's speech, though it can be interpreted as the encouragement of drug use, has nothing to do with anyone in the school. So this case can not be directly applied to K.L.'s case.

The following two cases are highly similar to K.L.'s case, and we should definitely address those. Both off-campus, online media platforms target someone in school. In Wisniewski, the student created an instant messaging icon at home, depicting a pistol firing a bullet at his English teacher's head with the caption "Kill Mr. VanderMolen." Although created entirely off-campus, the icon was circulated among classmates and eventually reached school officials, leading to classroom disruptions, teacher replacement, and administrative interviews. The court found that off-campus conduct could create a foreseeable risk of substantial disruption within the school environment. In Kowalski, the student created a MySpace page targeting another student for harassment. Although the conduct occurred entirely off-campus, the Fourth Circuit concluded

that schools could regulate such behavior because it had a substantial and foreseeable impact on school activities and the well-being of students. The Court emphasized that off-campus conduct is not immunized if it materially disrupts classwork or invades the rights of others. Kowalski strongly supports Mountain Range School. Like Kowalski, K.L.'s conduct was off-campus but caused emotional harm and disturbance among the student body, interfering with the school's educational mission and students' rights.

Applying these precedents to the hypothetical case: Although K.L. created the video off-campus, the video's circulation among students triggered disruptions within the school, similar to Wisniewski and Kowalski. Unlike Morse, there was no school sponsorship, but Morse is distinguishable rather than controlling.

Topic #3: Vulgar or Lewd Speech

In *Tinker v. Des Moines Independent Community School District*, 393 U.S. 503 (1969), the students engaged in symbolic political expression by wearing black armbands to protest the Vietnam War. The Supreme Court emphasized that the First Amendment protects such symbolic acts of expressing personal views. K.L.'s side can directly cite that the Court underscored that students do not "shed their constitutional rights to freedom of speech or expression at the schoolhouse gate," citing precedents such as *Meyer v. Nebraska*, *Pierce v. Society of Sisters*, and *West Virginia State Board of Education v. Barnette*. The key principle from *Tinker* is that political and ideological speech receives strong protection under the First Amendment, provided it does not materially and substantially disrupt the school environment.

However, in *Bethel School District No. 403 v. Fraser*, the Court drew a clear distinction between political expression and vulgar or lewd speech. We should emphasize this borderline as our strategy. Fraser's speech at a school assembly, laden with sexual innuendo, was found to be inconsistent with the "fundamental values" of public education. The Court held that the First Amendment does not prevent schools from prohibiting vulgar and offensive speech, reasoning that public education's mission is not only to promote knowledge but also to inculcate habits of civility and good citizenship:

“[P]ublic education must prepare pupils for citizenship in the Republic... It must inculcate the habits and manners of civility as values in themselves conducive to happiness and as indispensable to the practice of self-government in the community and the nation.”

Thus, Fraser’s vulgar speech was not afforded the same level of constitutional protection as the political protest in *Tinker*. The Court justified school intervention on moral and educational grounds. The reasoning in *Bethel* supports our client, Mountain Range School, in the present case. K.L.’s video contained vulgar and offensive language aimed at ridiculing another student rather than expressing a political or ideological viewpoint. The speech in K.L.’s video, much like Fraser’s speech, was devoid of political content and instead was insulting and degrading to another individual, undermining the educational mission of promoting civility.

In *Morse v. Frederick*, the Court further limited the scope of protected student speech. The student displayed a banner reading “BONG HiTS 4 JESUS” at a school-supervised event. The Court found that, even though the message was conveyed off-campus during a parade, it was interpreted as promoting drug use—a message fundamentally inconsistent with the school’s mission to discourage illegal drug use among students. The Court ruled that schools may regulate student speech that encourages illegal drug use or that contravenes important educational objectives.

Applying the reasoning from *Morse* to the hypothetical case, K.L.’s video was similarly incompatible with the school’s mission. Although it was created off-campus, the video’s content was purely vulgar, lacking any political or social commentary, and targeted another student for ridicule. As in *Morse*, the school has a compelling interest in maintaining a respectful and civil environment, justifying its intervention.

In *Kowalski v. Berkeley County Schools*, 652 F.3d 565 (4th Cir. 2011), the student created a MySpace page targeting a classmate with derogatory comments. Although the speech occurred off-campus, the Court found the conduct to be cyberbullying and upheld the school’s authority to discipline the student, emphasizing the serious emotional and educational harm caused to the victim. Importantly, in *Kowalski*, the speech was not directed at any political or social issue but was instead personal and offensive, focusing on humiliating another student.

The situation in K.L.'s case mirrors Kowalski's. K.L. recorded and uploaded a video containing vulgar insults directed at a specific peer. The language used in the video was offensive and demeaning, resembling the cyberbullying behavior condemned in Kowalski. It's worth mentioning that neither Kowalski nor K.L. really said those offensive words. However, they acted as a contagion source that accelerated the spread of speech: without their platform, these utterances would not have had that serious impact in schools. Just as it stated in the court's opinion in Bethel's case, if those words took place in private conversations, it would not hurt other people. Moreover, the content lacked any redeeming political or social value, falling squarely within the category of speech that Bethel and Morse recognized as subject to school regulation.

Thus, K.L.'s video cannot be protected under the First Amendment as political expression under Tinker. Instead, it falls into the category of vulgar and offensive speech that schools have a legitimate interest in regulating. The public school's educational mission to foster civility and good citizenship justifies its decision to discipline K.L. The fact that the speech occurred off-campus does not negate the school's authority, especially when the speech foreseeably impacts the school environment and targets members of the school community.

Conclusion

Although the students do lose their right to free speech at school, it doesn't mean that all the speech is allowed in the educational context, especially that which has a material and substantial disruption to the school's educational mission. Considering the level of description, the non-political essence, and the lewd and vulgar language, the school has the right to discipline those speeches and does not violate their freedom of speech.

Issue #2 Due Process

Issue Statement

Whether the disciplinary suspension imposed on K.L. violated her constitutional right to due process, considering that school rules are not required to match the specificity of civil statutes, and that K.L.'s own behavior, such as asking whether to delete the video, indicates she understood her actions could result in school sanctions.

Primary Rule of Law

The Fourteenth Amendment's Due Process Clause provides that:

"No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law."

Secondary Rule of Law

The Supreme Court in *Bethel School District No. 403 v. Fraser*, 478 U.S. 675 (1986), emphasized:

"We have recognized that 'maintaining security and order in the schools requires a certain degree of flexibility in school disciplinary procedures, and we have respected the value of preserving the informality of the student-teacher relationship.'"

Furthermore, the Court noted:

"Given the school's need to be able to impose disciplinary sanctions for a wide range of unanticipated conduct disruptive of the educational process, the school disciplinary rules need not be as detailed as a criminal code which imposes criminal sanctions."

Application

The due process clause of the Fourteenth Amendment guarantees that no individual shall be deprived of liberty or property without appropriate legal procedures. However, in the educational setting, the Supreme Court has recognized that schools must be granted some degree of flexibility in maintaining order and discipline. In *Bethel v. Fraser*, the Court acknowledged that the structure of school disciplinary procedures must preserve the informality essential to the

student-teacher relationship, and that formal criminal procedures are not necessary in the school context. Similarly, the court reinforced that school disciplinary codes are not expected to match the specificity of criminal codes. Schools must be able to address a broad array of misconduct that may not be precisely foreseeable. This principle directly applies to K.L.'s situation. The opposite side would argue that K.L. may not be fully aware of the consequences and was not informed of the rule before, because the school's code of conduct may not have explicitly stated, "You cannot film insulting videos off-campus." However, we can argue that the code of conduct could possibly enumerate every prohibited behavior in advance. Expecting such specificity would place an unrealistic burden on school administrators.

More importantly, we can say that K.L.'s own behavior indicates she understood the potential consequences of her actions. The night before the video went public, K.L. asked A.C., one of the targeted students, if she wanted the video deleted. This request shows that K.L. was aware the video was inappropriate and could cause harm, suggesting she had implicit notice that her behavior might violate school expectations. It would be unreasonable to expect a teacher or school authority to anticipate and warn K.L. about every possible harmful action in advance, especially conduct occurring off-campus.

Thus, Mountain Range School's disciplinary action did not violate K.L.'s due process rights. Given K.L.'s awareness of the potential harm caused by her conduct, the flexibility allowed under *Bethel v. Fraser*, and the proportionate nature of the punishment, the school's response was constitutionally permissible.

Conclusion

In educational settings, due process does not require detailed advance notice of every conceivable violation. K.L.'s awareness of the possible consequences, combined with the reasonable and proportionate disciplinary action by Mountain Range School, confirms that no violation of constitutional due process occurred in this case.